

OPEN SOURCE YOGA UNITY, Plaintiff,
v.
BIKRAM CHOUDHURY, Defendant.

**UNITED STATES DISTRICT COURT FOR THE NORTHERN
DISTRICT OF CALIFORNIA**

74 U.S.P.Q.2D (BNA) 1434

April 1, 2005, Decided
April 1, 2005, Filed

OPINION BY: PHYLLIS J. HAMILTON

OPINION

BACKGROUND

Plaintiff Open Source Yoga Unity ("OSYU") has filed a declaratory relief action, seeking a declaration that Choudhury does not have valid copyright or trademark rights in a series of yoga exercises he has compiled under the name "Bikram yoga."

Bikram yoga consists of a sequence of 26 yoga positions (known as "asanas") and two breathing exercises, performed at a room temperature of around 100 degrees Fahrenheit. Both parties agree that the asanas themselves are in the public domain, but that Choudhury was the first to select and arrange this particular sequence of asanas in this particular way. Choudhury first selected and arranged these asanas around 1965 or 1970, and taught the sequence in Southern California throughout the 1970s. Choudhury also presented the yoga sequence at a conference in Japan in 1972.

Choudhury first sought copyright protection for his work in 1979, when he registered his book *Bikram's Beginning Yoga Class*, which was subsequently published (in the ordinary sense) also in 1979. Choudhury has since filed five additional copyright registrations for various books, audiotapes and videotapes, and finally, in 2002, for the yoga sequence itself. The copyright registration for the yoga sequence was filed as a supplemental registration to the copyright Choudhury holds in his book which was created in 1978 and which is alleged to be the first place the yoga sequence appeared in print....

Over the last several years, Choudhury has notified yoga instructors that they must obtain a license from him in order to teach Bikram yoga, which he asserts includes not only the exact 26 asanas and two breathing exercises, but all derivative forms of the sequence as well, if the derivative form includes a sequence that is "substantially similar" to the original Bikram yoga sequence... At the hearing, Choudhury stated that he was not at this time pursuing individual yoga practitioners who do not teach but simply perform the Bikram yoga sequence, either at home with the books and tapes or in yoga classes.

OSYU and Choudhury have now filed cross-motions for summary judgment. OSYU has filed four separate motions, whereas Choudhury has filed one motion containing all of his arguments. OSYU first moves for summary judgment on copyright invalidity, claiming in one motion that yoga sequences cannot be copyrighted as a matter of law... OSYU next moves for summary judgment on the question of copyright misuse by Choudhury... Choudhury moves for summary judgment in his favor on all of the same issues.

DISCUSSION

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B. Copyright Validity and Infringement

OSYU's first motion for summary judgment concerns copyright validity and infringement. In this motion, OSYU claims that individual yoga asanas are in the public domain and constitute functional information rather than expressive creative content, and as a result yoga in general cannot be copyrighted and therefore OSYU's members are not liable for infringement. Choudhury claims in response that his copyright was properly obtained and properly encompasses not only the contents of his books but the yoga sequence itself. Choudhury claims that his yoga sequence constitutes a copyrightable compilation of information in the public domain and that all the accompanying rights of copyrightability thus flow from his registration.

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2. Copyright Validity

The court readily acknowledges that this is a very unusual case. All the parties agree that yoga is an ancient physical practice, and that the individual asanas that comprise the Bikram yoga sequence have been in the public domain for centuries. On first impression, it thus seems inappropriate, and almost unbelievable, that a sequence of yoga positions could be any one person's intellectual property.

However, what is at issue are two competing principles of copyright law. On the one hand, copyright law does not protect factual or functional information, or information that is already in the public domain. On the other hand, copyright law does extend protection to an arrangement of information in the public domain assembled in a sufficiently creative fashion. The question at hand is how to reconcile these two principles.

In 1991, the Supreme Court decided the seminal case of *Feist Publications, Inc. v. Rural Telephone Serv. Co.*, which held that compilations of factual information arranged in an obvious manner, such as alphabetical listings of names, addresses and telephone numbers in a telephone book, could not be copyrighted simply because of the time and effort it took to collect the information. 499 U.S. 340, 113 L. Ed. 2d 358, 111 S. Ct. 1282 (1991). Some creative contribution must be made to the compilation itself for copyright protection to attach. So, for instance, in *Key Publications, Inc. v. Chinatown Today Publishing Enters., Inc.*, 945 F.2d 509, 516 (2d Cir. 1991), copyright protection in a telephone book was found for the otherwise-uncopyrightable facts of a business' name and phone number because the author of the telephone

book in question had creatively selected and arranged its entries by compiling the names of businesses of interest to the Chinese community....

Thus, copyright law provides that while functional and public domain material remains free for all to use, a compilation of that material may nonetheless qualify for copyright protection if the compiler can demonstrate a sufficient level of creativity in the selection and arrangement of the elements in the compilation. It is against this backdrop that Choudhury's claims must be evaluated.

While OSYU admits that Choudhury has creatively selected and arranged individual unprotected functional asanas into the Bikram yoga sequence, it argues that the Bikram yoga sequence nonetheless cannot be copyrighted because the practice of yoga and the individual asanas cannot be considered creative expression but are instead merely uncopyrightable functional physical movements. OSYU claims that physical movements and exercise regimens cannot be copyrighted, and that the Bikram yoga sequence cannot be considered copyrightable choreography. Choudhury responds that the Bikram yoga sequence warrants copyright protection simply because it is a compilation of asanas that were creatively selected and arranged.

OSYU first argues that physical exercise regimens in general cannot be copyrighted, citing *National Basketball Ass'n and NBA Prop., Inc. v. Motorola, Inc.*, 105 F.3d 841, 846 (2d Cir. 1997) (NBA does not hold copyright in basketball games). However, as Choudhury correctly notes, the reason why basketball games, or sports activities in general, cannot be copyrighted is because these activities are unscripted and do not involve a fixed routine of motions. Rather they encompass many unanticipated movements resulting from the competitive nature of sports. Because the Bikram yoga sequence is a predetermined sequence of asanas performed the same way every time without a competitive element, *NBA* does not apply.

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Thus, OSYU has provided no persuasive authority that a compilation of yoga asanas cannot be protected under the copyright laws in the same manner as other compilations. The court, while recognizing, and even agreeing that application of the law of compilations to yoga asanas appears to violate the spirit of yoga, has been unable to locate any authority that precludes such application. Therefore, if the trier of fact determines that a sufficient number of the individual yoga asanas are arranged in a sufficiently creative manner, copyright protection for the yoga sequence would be available...

Here, Choudhury claims that he arranged the asanas in a manner that was both aesthetically pleasing and in a way that he believes is best designed to improve the practitioner's health. At a minimum, this creates a dispute of fact on the issue of whether sufficient creativity exists in the Bikram yoga routine so that copyright protection attaches, and thus summary judgment on both copyright validity and copyright invalidity must be denied.

3. Infringement of Bikram Yoga Sequence

If the Bikram yoga sequence can be copyrighted, any copyright that exists is necessarily considered "thin." In other words, Choudhury's copyright protects only the arrangement of asanas as specifically described in Choudhury's book. See, e.g., *Apple Computer v. Microsoft Corp.*, 35 F.3d 1435, 1444 (9th Cir. 1994) ("[w]hen the range of protectable expression is

narrow, the appropriate standard for illicit copying is virtual identity."); *Feist*, 499 U.S. at 349 (another compiler can use the same basic noncopyrightable elements as the first compiler without infringing on the first compiler's copyright in the compilation, "so long as the work does not feature the same selection and arrangement."). Nonetheless, even under a thin copyright, Choudhury may properly enjoin exact or near-exact duplications of his yoga sequence, if the routines taught by plaintiffs are "substantially similar" to Choudhury's, and thus infringing.

Both parties' positions on this issue are inconsistent and thus somewhat unclear. Choudhury claims in his opposition brief that he does not seek to enjoin yoga teachers from performing and teaching sequences other than the exact sequence of 26 asanas set forth in his 1979 book. However, OSYU has produced cease and desist letters from Choudhury in which he states that he seeks to enjoin not only exact duplications of the Bikram yoga sequence, but also any modifications to the sequence that add or subtract asanas. At the hearing, Choudhury stated that he seeks to enjoin any yoga sequences he deems "substantially similar" to his own. Thus, the court cannot determine what relief Choudhury is in fact requesting in his motion.

OSYU's position is similarly unclear. On the one hand OSYU claims that its members do not infringe and on the other it asserts that infringement is not an issue in this case. OSYU requests a declaration from the court that none of its members infringe Choudhury's copyright, but has also continuously refused to disclose to Choudhury the elements of the yoga routines taught by its individual members. OSYU takes the position that it need not divulge what its members are teaching because the copyright is invalid and the court need not reach the issue of infringement. However, as discussed above, summary judgment on validity and invalidity is denied for both parties. On this record, it is impossible for the court to evaluate OSYU's claims of non-infringement without additional information about the actual yoga sequences practiced by the individual OSYU instructors.

OSYU does admit that one member teaches the exact Bikram yoga sequence, with no modification, and several others teach yoga sequences that are similar but modify Choudhury's sequence in some unspecified ways. OSYU provides no other information about the sequences taught, such as the order of the asanas, what modifications have been made to the order or to the asanas themselves, or whether the sequences involve specific moves that are common to all yoga practices and thus cannot be copyrighted, among other potentially pertinent information.

Assuming copyright protection is found at trial to attach to the Bikram yoga sequence, the court would find, at a minimum, that exact duplication of the sequence infringes.

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F. Conclusion

OSYU's motions for summary judgment are DENIED...

IT IS SO ORDERED.